

24CMCV02013 24CMCV02013

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-10

Motion: DEFENDANT XUELI JIAO'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C09%2F10%2F2026

Source SHA-256: 4d9075f0e4dd88850b8fb32e8a7ac0b8e7d054e527b6a93c05573711e86b7906

Case Number: 24CMCV02013 Hearing Date: September 10, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

EDWARD DONNELL SMITH,

Plaintiff,

vs.

RAFAEL

GUZMAN, et al.,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24CMCV02013

[TENTATIVE]

ORDER RE: DEFENDANT XUELI JIAO'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

Dept.

A

DATE:

September 10, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 12/19/2024

TRIAL:

12/07/2026

MOVING

PARTY: Defendant Xueli Jiao

RESPONDING

PARTY: None

1. Background

This is a motor vehicle collision action. Plaintiff Edward Donnell Smith ("Plaintiff") alleges that on May 3, 2024, he was a passenger in a vehicle being driven by defendant Rafael Guzman. Plaintiff alleges that Defendants Rafael Guzman; Xueli Jiao; Access Services; and Global Paratransit, Inc. negligently maintained, managed, cared for, entrusted, or drove their vehicles so as to cause a multi-vehicle collision including the vehicle in which Plaintiff was a passenger, causing Plaintiff personal injury.

2. Discussion

Defendant Xueli

Jiao ("Movant") moves for an order determining that their settlement with Plaintiff was made in good faith. The parties entered into a settlement whereby Movant would pay \$25,000, their insurance policy limit, in exchange for which Plaintiff would dismiss the action as against Movant. No parties have opposed this motion.

A plaintiff may settle with one of several joint tortfeasors or co-obligors on a contract without releasing the others. Provided it is in "good faith," the settlement discharges the settling defendant from liability to the other defendants for equitable contribution or comparative indemnity but not for contractual indemnity. (Code Civ. Proc., §§ 877, 877.6.)

"Good faith" does not have a precise definition, but may be determined by taking into account a number of factors, including "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions

and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Tech-Bilt, Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499.) Another key factor is the settling tortfeasor's potential liability for indemnity to joint tortfeasors. (Far West Fin'l Corp. v. D & S Co. (1988) 46 Cal.3d 796, 816, fn. 16.) The party asserting the lack of good faith has the burden of proof on that issue. (Code. Civ. Proc., § 877.6, subd. (d).)

Plaintiff and Movant entered into a settlement that Movant pay Plaintiff a total of \$25,000. Movant contends that this settlement agreement reflects their proportionate share of liability, the seriousness of Plaintiff's injuries, and the uncertainties of trial, and that it constitutes Movant's insurance policy limit. Because of the policy limit, Movant's financial condition is not at issue.

Movant contends that there was no collusion, fraud, or tortious conduct aimed at injuring the interests of third parties involved in the formation of the settlement agreement and that the settlement negotiations were adversarial and conducted in good faith.

The court construes the lack of opposition from the other parties to this action as a tacit admission that Movant's motion is meritorious. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410; see also Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215 ["Contentions are waived when a party fails to support them with reasoned argument and citations to authority."].) The court also notes the lack of opposition because there is no argument or evidence from any of the parties here that this settlement was made in bad faith, and the party asserting bad faith bears the burden of proof. (Tech-Bilt, supra, 38 Cal.3d at pp. 499-500.) Additionally, there is no indication that this settlement was the result of collusion, fraud, or tortious conduct aimed at the non-settling defendants.

Movant's agreement to pay the maximum policy limit is a reasonable compromise between the parties.

3. Conclusion

Based on the

foregoing, the court GRANTS Defendant Xueli Jiao's motion for determination of good faith settlement.

Movant is ordered to give notice.

IT IS SO ORDERED.

DATED: September 10, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court